

Opinion of the Court

did not know whether Flowers' father still worked at Wal-Mart, which "supports an inference that Wright and Flowers did not have a close working relationship." 240 So. 3d, at 1163 (King, J., dissenting). And white prospective jurors also had relationships with members of Flowers' family. Indeed, white prospective juror Pamela Chesteen stated that she had provided service to Flowers' family members at the bank and that she knew several members of the Flowers family. App. 83. Likewise, white prospective juror Bobby Lester worked at the same bank and also encountered Flowers' family members. *Id.*, at 86. Although Chesteen and Lester were questioned during group *voir dire*, the State did not ask Chesteen or Lester individual follow-up questions in order to explore the depth of their relationships with Flowers' family. And instead of striking those jurors, the State accepted them for the jury. To be sure, both Chesteen and Lester were later struck by the defense. But the State's acceptance of Chesteen and Lester necessarily informs our assessment of the State's intent in striking similarly situated black prospective jurors such as Wright.

The State also noted that Wright had once been sued by Tardy Furniture for collection of a debt 13 years earlier. *Id.*, at 209. Wright said that the debt was paid off and that it would not affect her evaluation of the case. *Id.*, at 71, 90–91. The victims in this case worked at Tardy Furniture. But the State did not explain how Wright's 13-year-old, paid-off debt to Tardy Furniture could affect her ability to serve impartially as a juror in this quadruple murder case. The "State's unsupported characterization of the lawsuit is problematic." 240 So. 3d, at 1163 (King, J., dissenting). In any event, the State did not purport to rely on that reason alone as the basis for the Wright strike, and the State in this Court does not rely on that reason alone in defending the Wright strike.

The State also explained that it exercised a peremptory strike against Wright because she had worked with one of

Opinion of the Court

Flowers' sisters. App. 209. That was incorrect. The trial judge immediately stated as much. *Id.*, at 218–219. But incorrect statements of that sort may show the State's intent: When a prosecutor misstates the record in explaining a strike, that misstatement can be another clue showing discriminatory intent.

That incorrect statement was not the only one made by the prosecutor. The State made apparently incorrect statements to justify the strikes of black prospective jurors Tashia Cunningham, Edith Burnside, and Flancie Jones. The State contradicted Cunningham's earlier statement that she had only a working relationship with Flowers' sister by inaccurately asserting that Cunningham and Flowers' sister were close friends. See *id.*, at 84, 220. The State asserted that Burnside had tried to cover up a Tardy Furniture suit. See *id.*, at 226. She had not. See *id.*, 70–71. And the State explained that it struck Jones in part because Jones was Flowers' aunt. See *id.*, at 229. That, too, was not true. See *id.*, at 86–88. The State's pattern of factually inaccurate statements about black prospective jurors suggests that the State intended to keep black prospective jurors off the jury. See *Foster*, 578 U. S., at 512–513; *Miller-El II*, 545 U. S., at 240, 245.

To be sure, the back and forth of a *Batson* hearing can be hurried, and prosecutors can make mistakes when providing explanations. That is entirely understandable, and mistaken explanations should not be confused with racial discrimination. But when considered with other evidence of discrimination, a series of factually inaccurate explanations for striking black prospective jurors can be telling. So it is here.

The side-by-side comparison of Wright to white prospective jurors whom the State accepted for the jury cannot be considered in isolation in this case. In a different context, the Wright strike might be deemed permissible. But we must examine the whole picture. Our disagreement with

Opinion of the Court

the Mississippi courts (and our agreement with Justice King’s dissent in the Mississippi Supreme Court) largely comes down to whether we look at the Wright strike in isolation or instead look at the Wright strike in the context of all the facts and circumstances. Our precedents require that we do the latter. As Justice King explained in his dissent in the Mississippi Supreme Court, the Mississippi courts appeared to do the former. 240 So. 3d, at 1163–1164. As we see it, the overall context here requires skepticism of the State’s strike of Carolyn Wright. We must examine the Wright strike in light of the history of the State’s use of peremptory strikes in the prior trials, the State’s decision to strike five out of six black prospective jurors at Flowers’ sixth trial, and the State’s vastly disparate questioning of black and white prospective jurors during jury selection at the sixth trial. We cannot just look away. Nor can we focus on the Wright strike in isolation. In light of all the facts and circumstances, we conclude that the trial court clearly erred in ruling that the State’s peremptory strike of Wright was not motivated in substantial part by discriminatory intent.

* * *

In sum, the State’s pattern of striking black prospective jurors persisted from Flowers’ first trial through Flowers’ sixth trial. In the six trials combined, the State struck 41 of the 42 black prospective jurors it could have struck. At the sixth trial, the State struck five of six. At the sixth trial, moreover, the State engaged in dramatically disparate questioning of black and white prospective jurors. And it engaged in disparate treatment of black and white prospective jurors, in particular by striking black prospective juror Carolyn Wright.

To reiterate, we need not and do not decide that any one of those four facts alone would require reversal. All that we need to decide, and all that we do decide, is that all of the relevant facts and circumstances taken together estab-

ALITO, J., concurring

lish that the trial court at Flowers' sixth trial committed clear error in concluding that the State's peremptory strike of black prospective juror Carolyn Wright was not motivated in substantial part by discriminatory intent. In reaching that conclusion, we break no new legal ground. We simply enforce and reinforce *Batson* by applying it to the extraordinary facts of this case.

We reverse the judgment of the Supreme Court of Mississippi, and we remand the case for further proceedings not inconsistent with this opinion.

It is so ordered.

JUSTICE ALITO, concurring.

As the Court takes pains to note, this is a highly unusual case. Indeed, it is likely one of a kind. In 1996, four defenseless victims, three white and one black, were slaughtered in a furniture store in a small town in Montgomery County, Mississippi, a jurisdiction with fewer than 11,000 inhabitants. One of the victims was the owner of the store, which was widely frequented by residents of the community. The person prosecuted for this crime, petitioner Curtis Flowers, an African-American, comes from a local family whose members make up a gospel group and have many community ties.

By the time jury selection began in the case now before us, petitioner had already been tried five times for committing that heinous and inflammatory crime. Three times, petitioner was convicted and sentenced to death, but all three convictions were reversed by the State Supreme Court. Twice, the jurors could not reach a unanimous verdict. In all of the five prior trials, the State was represented by the same prosecutor, and as the Court recounts, many of those trials were marred by racial discrimination in the selection of jurors and prosecutorial misconduct. Nevertheless, the prosecution at the sixth trial was led by the same prosecutor, and the case was tried in Montgomery

THOMAS, J., dissenting

County where, it appears, a high percentage of the potential jurors have significant connections to either petitioner, one or more of the victims, or both.

These connections and the community’s familiarity with the case were bound to complicate a trial judge’s task in trying to determine whether the prosecutor’s asserted reason for striking a potential juror was a pretext for racial discrimination, and that is just what occurred. Petitioner argues that the prosecution improperly struck five black jurors, but for each of the five, the prosecutor gave one or more reasons that not only were facially legitimate but were of a nature that would be of concern to a great many attorneys. If another prosecutor in another case in a larger jurisdiction gave any of these reasons for exercising a peremptory challenge and the trial judge credited that explanation, an appellate court would probably have little difficulty affirming that finding. And that result, in all likelihood, would not change based on factors that are exceedingly difficult to assess, such as the number of *voir dire* questions the prosecutor asked different members of the venire.

But this is not an ordinary case, and the jury selection process cannot be analyzed as if it were. In light of all that had gone before, it was risky for the case to be tried once again by the same prosecutor in Montgomery County. Were it not for the unique combinations of circumstances present here, I would have no trouble affirming the decision of the Supreme Court of Mississippi, which conscientiously applied the legal standards applicable in less unusual cases. But viewing the totality of the circumstances present here, I agree with the Court that petitioner’s capital conviction cannot stand.

JUSTICE THOMAS, with whom JUSTICE GORSUCH joins as to Parts I, II, and III, dissenting.

On a summer morning in July 1996 in Winona, Mississippi, 16-year-old Derrick “Bobo” Stewart arrived for the second

THOMAS, J., dissenting

day of his first job. He and Robert Golden had been hired by the Tardy Furniture store to replace petitioner Curtis Flowers, who had been fired a few days prior and had his paycheck docked for damaging store property and failing to show up for work. Another employee, Sam Jones, Jr., planned to teach Stewart and Golden how to properly load furniture.

On Jones' arrival, he found a bloodbath. Store owner Bertha Tardy and bookkeeper Carmen Rigby had each been murdered with a single gunshot to the head. Golden had been murdered with two gunshots to the head, one at very close range. And Stewart had been shot, execution style, in the back of his head. When Jones entered the store, Stewart was fighting for every breath, blood pouring over his face. He died a week later.

On the morning of the murders, a .380-caliber pistol was reported stolen from the car of Flowers' uncle, and a witness saw Flowers by that car before the shootings. Officers recovered .380-caliber bullets at Tardy Furniture and matched them to bullets fired by the stolen pistol. Gunshot residue was found on Flowers' hand a few hours after the murders. A bloody footprint found at the scene matched both the size of Flowers' shoes and the shoe style that he was seen wearing on the morning of the murders. Multiple witnesses placed Flowers near Tardy Furniture that morning, and Flowers provided inconsistent accounts of his whereabouts. Several hundred dollars were missing from the store's cash drawer, and \$235 was found hidden in Flowers' headboard after the murders. 240 So. 3d 1082, 1092–1095, 1107 (Miss. 2017).

In the 2010 trial at issue here, Flowers was convicted of four counts of murder and sentenced to death. Applying heightened scrutiny, the state courts found that the evidence was more than sufficient to convict Flowers, that he was tried by an impartial jury, and that the State did not engage in purposeful race discrimination in jury selection in viola-

THOMAS, J., dissenting

tion of the Equal Protection Clause. *Id.*, at 1096, 1113, 1139, 1135.

The Court today does not dispute that the evidence was sufficient to convict Flowers or that he was tried by an impartial jury. Instead, the Court vacates Flowers' convictions on the ground that the state courts clearly erred in finding that the State did not discriminate based on race when it struck Carolyn Wright from the jury.

The only clear errors in this case are committed by today's majority. Confirming that we never should have taken this case, the Court almost entirely ignores—and certainly does not refute—the race-neutral reasons given by the State for striking Wright and four other black prospective jurors. Two of these prospective jurors knew Flowers' family and had been sued by Tardy Furniture—the family business of one of the victims and also of one of the trial witnesses. One refused to consider the death penalty and apparently lied about working side by side with Flowers' sister. One was related to Flowers and lied about her opinion of the death penalty to try to get out of jury duty. And one said that because she worked with two of Flowers' family members, she might favor him and would not consider only the evidence presented. The state courts' findings that these strikes were not based on race are the opposite of clearly erroneous; they are clearly correct. The Court attempts to overcome the evident race neutrality of jury selection in this trial by pointing to a supposed history of race discrimination in previous trials. But 49 of the State's 50 peremptory strikes in Flowers' previous trials were race neutral. The remaining strike occurred 20 years ago in a trial involving only one of Flowers' crimes and was never subject to appellate review; the majority offers no plausible connection between that strike and Wright's.

Today's decision distorts the record of this case, eviscerates our standard of review, and vacates four murder convic-

THOMAS, J., dissenting

tions because the State struck a juror who would have been stricken by any competent attorney. I dissent.

I

Twice now, the Court has made the mistake of granting this case. The first time, this case was one of three that the Court granted, vacated, and remanded in light of *Foster v. Chatman*, 578 U.S. 488 (2016), which involved a challenge under *Batson v. Kentucky*, 476 U.S. 79 (1986). See *Flowers v. Mississippi*, 579 U.S. 913 (2016). But “*Foster* did not change or clarify the *Batson* rule in any way,” so remanding was senseless and unproductive: “Without pointing out any errors in the State Supreme Court’s analysis” or bothering to explain how *Foster* was relevant, “the [Court] simply order[ed] the State Supreme Court to redo its work.” *Flowers*, 579 U.S., at 913, 915 (ALITO, J., dissenting from decision to grant, vacate, and remand).

Unsurprisingly, no one seemed to understand *Foster*’s relevance on remand. The defendants simply “re-urge[d] the arguments [they] had raised” before, and all three courts promptly reinstated their prior decisions—confirming the impropriety of the entire enterprise. 240 So. 3d, at 1117–1118, 1153; *State v. Williams*, 2013–0283 (La. App. 4 Cir. 9/7/16), 199 So. 3d 1222, 1230, 1238 (pointing out that “*Foster* did not change the applicable principles for analyzing a *Batson* claim”); *Ex parte Floyd*, 227 So. 3d 1, 13 (Ala. 2016).

Flowers then filed another petition for certiorari, raising the same question as his first petition: whether a prosecutor’s history of *Batson* violations is irrelevant when assessing the credibility of his proffered explanations for peremptory strikes. Under our ordinary certiorari criteria, we would never review this issue. There is no disagreement among the lower courts on this question, and the question is not implicated by this case—the Mississippi Supreme Court *did* consider the prosecutor’s history, see 240 So. 3d, at 1122–1124, 1135, and, to the extent there is a relevant history here, it is one of race-neutral strikes, see Part III, *infra*.

THOMAS, J., dissenting

Nonetheless, Flowers' question presented at least had the virtue of being a question of law that could affect *Batson's* application. Unchastened by its *Foster* remand, however, the Court granted certiorari and changed the question presented to ask merely whether the Mississippi Supreme Court had misapplied *Batson* in this particular case. In other words, the Court tossed aside any pretense of resolving a legal question so it could reconsider the factual findings of the state courts. In so doing, the Court disregards the rule that "[w]e do not grant a certiorari to review evidence and discuss specific facts," *United States v. Johnston*, 268 U. S. 220, 227 (1925), particularly where there are "'concurrent findings of fact by two courts below,'" *Exxon Co., U. S. A. v. Sofec, Inc.*, 517 U. S. 830, 841 (1996).

The Court does not say why it disregarded our traditional criteria to take this case. It is not as if the Court lacked better options. See *Gee v. Planned Parenthood of Gulf Coast, Inc.*, 586 U. S. 1057 (2018) (THOMAS, J., dissenting from denial of certiorari). Perhaps the Court lacked confidence in the proceedings below. Flowers' case, like the others needlessly remanded in light of *Foster*, comes to us from a state court in the South. These courts are "familiar objects of the Court's scorn," *United States v. Windsor*, 570 U. S. 744, 795 (2013) (Scalia, J., dissenting), especially in cases involving race.¹

Or perhaps the Court granted certiorari because the case has received a fair amount of media attention. But if so, the Court's action only encourages the litigation and relitigation of criminal trials in the media, to the potential detriment of all parties—including defendants. The media often seeks "to titillate rather than to educate and inform." *Chandler v. Florida*, 449 U. S. 560, 580 (1981). And the Court has "long recognized that adverse publicity can endanger the

¹ *E. g.*, *Tharpe v. Sellers*, 583 U. S. 33 (2018) (*per curiam*); *Buck v. Davis*, 580 U. S. 100 (2017); *Foster v. Chatman*, 578 U. S. 488 (2016); *In re Davis*, 557 U. S. 952 (2009); *Snyder v. Louisiana*, 552 U. S. 472 (2008).

THOMAS, J., dissenting

ability of a defendant to receive a fair trial,” by “influenc[ing] public opinion” and “inform[ing] potential jurors of . . . information wholly inadmissible at the actual trial.” *Gannett Co. v. DePasquale*, 443 U.S. 368, 378 (1979); *e.g.*, *Sheppard v. Maxwell*, 384 U.S. 333, 356–363 (1966); *Irvin v. Dowd*, 366 U.S. 717, 725–728 (1961). Media attention can produce other dangers, too, including discouraging reluctant witnesses from testifying and encouraging eager witnesses, prosecutors, defense counsel, and even judges to perform for the audience. See *Estes v. Texas*, 381 U.S. 532, 591 (1965) (Harlan, J., concurring). Any appearance that this Court gives closer scrutiny to cases with significant media attention will only exacerbate these problems and undermine the fairness of criminal trials.

Whatever the Court’s reason for taking this case, we should have dismissed it as improvidently granted. If the Court wanted to simply review the state courts’ application of *Batson*, it at least could have had the decency to do so the first time around. Instead, the Court wasted the State’s, defendant’s, and lower court’s time and resources—to say nothing of prolonging the ongoing “nightmare” of Bobo Stewart’s and the other victims’ families as they await justice. Tr. 3268–3272. And now, the majority considers it a point of pride to “break no new legal ground,” *ante*, at 288, 316, and proceeds to second-guess the factual findings of two different courts on matters wholly collateral to the merits of the conviction. If nothing else, its effort proves the reason behind the rule that we do not take intensively fact-specific cases.

II

The majority’s opinion is so manifestly incorrect that I must proceed to the merits. Flowers presented no evidence whatsoever of purposeful race discrimination by the State in selecting the jury during the trial below. Each of the five challenged strikes was amply justified on race-neutral grounds timely offered by the State at the *Batson* hearing.

THOMAS, J., dissenting

None of the struck black jurors was remotely comparable to the seated white jurors. And nothing else about the State's conduct at jury selection—whether trivial mistakes of fact or supposed disparate questioning—provides any evidence of purposeful discrimination based on race.

A

1

The majority focuses its discussion on potential juror Carolyn Wright, but the State offered multiple race-neutral reasons for striking her. To begin, Wright lost a lawsuit to Tardy Furniture soon after the murders, and a garnishment order was issued against her. App. 71–72; Record 2697. Noting that Wright claimed the lawsuit “would not affect her evaluation of the case,” the majority questions how this lawsuit “could affect [Wright’s] ability to serve impartially.” *Ante*, at 313. But the potential bias is obvious. The “victims in this case” did not merely “wor[k] at Tardy Furniture.” *Ibid*. At the time of the murders, Bertha Tardy owned Tardy Furniture. Following her murder, her daughter and son-in-law succeeded her as owners; they sued Wright, and the daughter testified at this trial. See App. 71, 209; 240 So. 3d, at 1093; Tr. 1656. Neither the trial court nor Flowers suffered from any confusion as to how losing a lawsuit to a trial witness and daughter of a victim might affect a juror. See App. 280, and n. 2; Recording of Oral Arg. 13:40–13:47 in No. 2010–DP–01348–SCT (Miss., July 21, 2014) (Flowers’ counsel arguing that “the potential jurors who were sued by” Tardy had more “basis for being upset with her” than Flowers did), <https://judicial.mc.edu/case.php?id=1122570>. Indeed, a portion of the daughter’s testimony focused on obtaining judgments and garnishments against customers who did not pay off their accounts. Tr. 2672–2674.

Faced with this strong race-neutral reason for striking Wright, the majority first suggests that the State did not

THOMAS, J., dissenting

adequately explain how the lawsuit could affect Wright. But it is obvious, and in any event the majority is wrong—the State *did* spell it out. See App. 209 (“She was sued by Tardy Furniture, after these murders, by the family members that will be testifying here today”). Moreover, Flowers did not ask for further explanation, instead claiming that “there is no evidence of an actual lawsuit,” *id.*, at 211, even though Wright had admitted it, *id.*, at 71–72. The State then entered into the record a copy of the judgment containing a garnishment amount. *Id.*, at 215; see Record 2697.

Second, the majority quotes the dissent below for the proposition that the “‘State’s unsupported characterization of the lawsuit is problematic.’” *Ante*, at 313. But the Court neglects to mention that the dissent’s basis for this statement was that “[n]othing in the record supports the contention that Wright’s wages were garnished.” 240 So. 3d, at 1162 (King, J., dissenting). Again, that is incorrect. See Record 2697.

Finally, the majority dismisses the lawsuit’s significance because “the State did not purport to rely on that reason *alone* as the basis for the Wright strike.” *Ante*, at 313 (emphasis added). But the fact that the State had *additional* race-neutral reasons to strike Wright does not make the lawsuit any less of a race-neutral reason. As the State explained, Wright knew nearly every defense witness and had worked with Flowers’ father at what the trial court described as the “smallest Wal-Mart . . . that I know in existence.” App. 218. The majority tries to minimize this connection by pointing out that “Wright said she did not know whether Flowers’ father still worked at Wal-Mart.” *Ante*, at 312–313. That is understandable, given that Wright testified that *she* no longer worked at the Wal-Mart. Tr. 782. The majority misses the point: Wright had worked in relatively close proximity with the defendant’s father.²

²The majority also complains that the State did not ask enough “follow-up questions” of Wright. *Ante*, at 312. I see no reason why the State needed more information. Besides, if the State *had* asked more ques-

THOMAS, J., dissenting

2

The majority, while admonishing trial courts to “consider the prosecutor’s race-neutral explanations,” *ante*, at 302, completely ignores the State’s race-neutral explanations for striking the other four black jurors.

Tashia Cunningham stated repeatedly that she “d[id]n’t believe in the death penalty” and would “not even consider” it. App. 129; see 2d Supp. Record 256b. When pressed by the trial court on this point, she vacillated, saying that she “d[id]n’t think” she could consider the death penalty but then, “I might. I might. I don’t know. I might.” App. 130. Opposition to the death penalty is plainly a valid, race-neutral reason for a strike. Moreover, Cunningham knew Flowers’ sister, having worked with her on an assembly line for several years. *Id.*, at 83–85. She testified that they did not work in close proximity, but a supervisor testified that they actually worked “side by side.” *Id.*, at 149–152. Both this apparent misstatement and the fact that Cunningham worked with Flowers’ sister are valid, race-neutral reasons.

Next, Edith Burnside knew Flowers personally. Flowers had visited in her home, lived one street over, and played basketball with her sons. *Id.*, at 75, 79–80. Burnside also testified repeatedly that she “could not judge anyone,” no “matter what the case was,” *id.*, at 69–70, 143–144, and that her “problem with judging” could “affect [her] judgment” here, *id.*, at 144. Finally, she too was sued by Tardy Furniture soon after the murders, and a garnishment order was entered against her. See *id.*, at 71, 141–142; *Tardy Furniture Co. v. Burnside*, Civ. No. 1359 (Justice Ct. Montgomery Cty., Miss., June 23, 1997), Dkt. 13, p. 553.

Next, Dianne Copper had worked with both Flowers’ father and his sister for “a year or two” each. App. 77, 189, 234, 236. She agreed that because of these relation-

tions, the majority would complain that the State engaged in “dramatically disparate” questioning of Wright.

THOMAS, J., dissenting

ships and others with various defense witnesses, she might “lean toward” Flowers and would be unable to “come in here . . . with an open mind.” *Id.*, at 190; see *id.*, at 78. She also said that deciding the case on “the evidence only” would make her “uncomfortable.” *Id.*, at 191–192.

Finally, as to Flancie Jones, Flowers conceded below that he “did not challenge [her] strike” and that “‘the State’s bases for striking Jones appear to be race neutral.’” Supp. Brief for Appellant in No. 2010–DP–01348–SCT (Miss.), p. 20, n. 12. Because any argument as to Jones “was not raised below, it is waived.” *Sprietsma v. Mercury Marine*, 537 U.S. 51, 56, n. 4 (2002). Even if Flowers had not waived this argument, this strike was obviously supported by race-neutral reasons. Jones was related to Flowers in several ways. See App. 73, 179. She was late to court on multiple occasions. *Id.*, at 180, 182. On her juror questionnaire, she said she was “strongly against the death penalty,” but when asked about her opposition, said, “I guess I’d say anything to get off” jury duty. *Id.*, at 181; see 2d Supp. Record 325b. She then admitted that she was not necessarily “being truthful” on her questionnaire but refused to provide her actual view on the death penalty, saying, “I—really and truly . . . don’t want to be here.” App. 181–182.

3

In terms of race-neutral validity, these five strikes are not remotely close calls. Each strike was supported by multiple race-neutral reasons articulated by the State at the *Batson* hearing and supported by the record. It makes a mockery of *Batson* for this Court to tell prosecutors to “provide race-neutral reasons for the strikes,” and to tell trial judges to “consider the prosecutor’s race-neutral explanations in light of all of the relevant facts and circumstances,” *ante*, at 302, and then completely ignore the State’s reasons for four out of five strikes.

THOMAS, J., dissenting

Only by ignoring these facts can the Court assert that “the State’s decision to strike five of the six black prospective jurors is further evidence suggesting that the State was motivated in substantial part by discriminatory intent.” *Ante*, at 307. Putting aside the fact that the majority has its numbers wrong (the State struck five of seven potential black jurors),³ the bare numbers are meaningless outside the context of the *reasons* for the strikes. The majority has no response whatsoever to the State’s race-neutral explanations and, for four of the five strikes, does not dispute the state courts’ conclusion that race played no role at all. For *Batson* purposes, these strikes might as well have been exercised against white jurors. Yet the majority illegitimately counts them all against the State.

B

Given the multiple race-neutral reasons for the State’s strikes, evidence of racial discrimination would have to be overwhelming to show a *Batson* violation. The majority’s evidence falls woefully short.

As the majority explains, “[c]omparing prospective jurors who were struck and not struck can be an important step in determining whether a *Batson* violation occurred.” *Ante*, at 311. For example, “[w]hen a prosecutor’s ‘proffered reason for striking a black panelist applies just as well to an otherwise-similar nonblack panelist who is permitted to serve, that is evidence tending to prove purposeful discrimination.’” *Ibid.* By the same token, a defendant’s failure to find any similarly situated whites permitted to serve tends to disprove purposeful discrimination. Here,

³The majority ignores the fact that, after the initial *Batson* challenge, the State tendered a black juror as an alternate instead of exercising available peremptory strikes. The State also tendered the first black juror available. This is hardly a “‘consistent pattern’” of strikes against black jurors. *Ante*, at 307.

THOMAS, J., dissenting

neither the majority nor Flowers has identified any non-struck white jurors remotely similar to any of the struck black jurors.

The majority points to white jurors Pamela Chesteen and Bobby Lester, who worked at the Bank of Winona and therefore had interacted with several members of Flowers' family as bank customers. By the majority's lights, Chesteen's and Lester's banker-customer relationship was the same as Wright's co-worker relationship with Flowers' father. *Ante*, at 312–313. That comparison is untenable. Lester testified that working at the bank meant he and Chesteen “s[aw] everyone in town.” App. 86. And as the trial court explained, “a bank teller, who waits on customers at a bank,” has a “substantially different” relationship from someone who “work[s] at the same business establishment with members of the defendant’s family.” *Id.*, at 278; see *id.*, at 236. The Mississippi Supreme Court agreed that “a coworker relationship” and “employee/customer relationship are distinguishable.” 240 So. 3d, at 1127. The majority mentions none of this, evidently relying on its superior knowledge of the banker-customer relationships at the Bank of Winona.

The more relevant comparator to Chesteen and Lester is Alexander Robinson, a black man who was a customer at a store where Flowers' brother worked. App. 82. The State confirmed with Robinson that this relationship was “just a working relationship”—*i. e.*, an employee-customer relationship—and immediately thereafter clarified with Chesteen and Lester that their relationships with Flowers' family members was “like Mr. Robinson, just a working relationship.” *Id.*, at 82–83, 85–86.⁴ The State then tendered Robinson, Chesteen, and Lester as jurors. *Id.*, at 203, 208. Later, the State would strike black jurors Wright and Copper, who were both co-workers of members of Flowers'

⁴Thus, the majority is simply wrong to complain that the State failed to ask Chesteen or Lester “individual follow-up questions” on this issue. *Ante*, at 313.

THOMAS, J., dissenting

family. As the trial court understood, it is “evident . . . that the prosecution utilized peremptory strikes only against those individuals who actually worked with, or who in the past had worked with, members of Flowers’ family.” *Id.*, at 278; see *id.*, at 279.

Next, the majority contends that white jurors Chesteen, Lester, and Harold Waller, like Wright, “knew many individuals involved in the case.” *Ante*, at 312. Yet the majority concedes that Wright knew more individuals than any of them. And the more relevant statistic from the State’s perspective is how many *defense* witnesses a juror knows, since that knowledge suggests a greater connection to the defendant. By Flowers’ own count, Wright knew substantially more defense witnesses than the three white jurors. According to Flowers, Wright knew 19 defense witnesses, while Chesteen knew 14 and Lester and Waller knew around 6 each. See Brief for Petitioner 49, n. 37; Brief for Appellant in No. 2010–DP–01348–SCT (Miss.), p. 114 (Brief for Appellant).

Additional relevant differences existed between Wright and the three white jurors. Wright had been *sued* by a witness and member of the victim’s family, and worked at the same store as the defendant’s father. Chesteen, on the other hand, was *friends* with the same member of the victim’s family and also knew another victim’s wife. App. 93–94, 46. The trial court found that Chesteen “had a much closer relationship with members of the victim[s]’ families tha[n] she had with anyone in Flowers’ family.” *Id.*, at 278.

Likewise, Waller knew victim Carmen Rigby and her husband; their children attended school with his daughter, and “[t]hey were involved in school activities together.” Tr. 821, 1042. He served on the school board with Rigby. *Id.*, at 1043. And victim Bobo Stewart “went to school with [Waller’s] daughter,” and Waller knew his family. App. 48, 53.

Similarly, Lester had been friends with Rigby’s husband “for years,” and he “knew her family.” Tr. 822, 1045. Lester’s wife taught Stewart first grade. App. 48; Tr. 1045.

THOMAS, J., dissenting

Lester was related by marriage to Bertha Tardy and had known the Tardy family his entire life, growing up with Bertha's daughter. *Id.*, at 787–788. His daughter had just graduated with Bertha's grandson, and they were friends. *Id.*, at 788, 1046. As Lester put it, “I have a lot of connections to the [victims'] families.” *Id.*, at 788.

Given that these prospective jurors were favorable for the State, it is hardly surprising that the State would not affirmatively “us[e] individual questioning to ask th[e]se potential white jurors whether they could remain impartial despite their relationships” with victims' families or prosecution witnesses, *ante*, at 312, for to do so could invite defense strikes. Revealingly, Flowers' counsel had exhaustively questioned these three white jurors—treating them much differently than Wright. Flowers' counsel asked Wright only a handful of questions, all of which sought to confirm that she could judge impartially. App. 90–91, 105–106. By contrast, Flowers' counsel asked Chesteen more than 30 questions, most of which sought to cast doubt on Chesteen's ability to remain impartial given her relationships with the victims' families. *Id.*, at 93–95, 111–118. Flowers' counsel asked Lester more than 60 questions and Waller about 15 questions along the same lines. Tr. 1045–1047; App. 160–174; Tr. 1042–1044; App. 123–124. Flowers was so concerned about these white jurors' connections with the victims that he tried to strike both Chesteen and Lester—but not Wright—for cause, and when that failed, he exercised peremptory strikes on all three white jurors. Tr. 1622, 1624, 1743–1744; App. 204, 208; see *id.*, at 278.

In short, no reasonable litigant or trial court would consider Wright “similarly situated,” *ante*, at 313, to these three white jurors.

C

The majority next discovers “clue[s]” of racial discrimination in minor factual mistakes supposedly made by the State during the *Batson* hearing. *Ante*, at 313–314. As an initial

THOMAS, J., dissenting

matter, Flowers forfeited this argument by failing to present it to the trial court. Under *Batson*, the trial court must decide whether, “*in light of the parties’ submissions*,” “the defendant has shown purposeful discrimination.” *Snyder v. Louisiana*, 552 U. S. 472, 477 (2008) (emphasis added; internal quotation marks omitted). The Court has made clear that “a prosecutor simply has got to state his reasons as best he can [at the *Batson* hearing] and stand or fall on the plausibility of the reasons he gives.” *Miller-El v. Dretke*, 545 U. S. 231, 252 (2005).

The same rule must apply to the defendant, the party with the ultimate burden of proving purposeful discrimination. *Johnson v. California*, 545 U. S. 162, 170–171 (2005); *Batson*, 476 U. S., at 96–98. Thus, if the defendant makes no argument on a particular point, the trial court’s failure to consider that argument cannot be erroneous, much less clearly so. See, e. g., *Davis v. Baltimore Gas & Elec. Co.*, 160 F. 3d 1023, 1027–1028 (CA4 1998); *Wright v. Harris County*, 536 F. 3d 436, 438 (CA5 2008). Excusing the defendant from making his arguments before the trial court encourages defense counsel to remain silent, prevents the State from responding, deprives the trial court of relevant arguments, and denies reviewing courts a sufficient record. See *Snyder*, *supra*, at 483; *Garraway v. Phillips*, 591 F. 3d 72, 76–77 (CA2 2010).⁵

Even if Flowers had not forfeited his argument about the State’s “mistakes,” it is devoid of merit. The *Batson* hearing was conducted immediately after *voir dire*, before a transcript was available. App. 214; *id.*, at 225–226. In explain-

⁵ At a minimum, Mississippi has reasonably read *Batson*’s “‘prophylactic framework,’” *Johnson v. California*, 545 U. S. 162, 174 (2005) (THOMAS, J., dissenting), to mean that the party making a *Batson* claim forfeits arguments not made to the trial court. See *Pitchford v. State*, 45 So. 3d 216, 227–228 (Miss. 2010); accord, Record 2965. Thus, whether as a matter of *Batson* itself or the State’s implementation of *Batson*, Flowers forfeited these arguments.

THOMAS, J., dissenting

ing their strikes, counsel relied on handwritten notes taken during a fast-paced, multiday *voir dire* involving 156 potential jurors. *Id.*, at 229, 258. Still, the majority comes up with only a few mistakes, and they are either imagined or utterly trivial. The majority claims that the State incorrectly “asserted that Burnside”—one of the struck black jurors—“had tried to cover up a Tardy Furniture suit.” *Ante*, at 314. But the State’s assertion was at least reasonable. When the State asked Burnside about the lawsuit, she responded that “[i]t wasn’t a dispute” and “[w]e never had no misunderstanding about it.” App. 141–142. Quite reasonably, the State asked why the matter ended up in court, and Burnside conceded that she had to be sued, even as she insisted that there “was no falling-out about it.” *Id.*, at 142. As previously explained, a judgment and garnishment were issued against her.

The majority’s other supposed mistakes are inconsequential. First, the State confused which potential juror worked with Flowers’ sister, and then corrected its mistake. See *id.*, at 218–219, 234. Second, the State referred to that juror, Tashia Cunningham, as “a close friend” of Flowers’ sister, whereas the testimony established only that they worked together closely. *Id.*, at 220. Flowers *agreed* with the “friendship” characterization during the *Batson* hearing, *id.*, at 221, and in any event, whether Cunningham and Flowers’ sister were close co-workers or close friends is irrelevant. Third, the State confused struck juror Flancie Jones’ familial relationships with Flowers, saying that Flowers’ sister was Jones’ niece, when in fact Flowers’ sister was apparently married to Jones’ nephew. *Id.*, at 229, 231. But whatever the precise relationship, even Flowers conceded that Jones had an “in-law relationship to the entire [Flowers] family,” so the relevant point remained: Jones was related in multiple ways to Flowers. *Id.*, at 230–231; Tr. 967–968. It is hard to imagine less significant “mistakes.”